

24STCV15440 24STCV15440

County: los-angeles

Division: Civil Law and Motion

Department: 14

Hearing date: 2026-08-21

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Case Number: 24STCV15440 Hearing Date: August 21, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

ROBERT LEE CHAMBERS and SHARON CHAMBERS,

Plaintiffs,

v.

BARNSTEAD THERMOLYNE, LLC, et al.

Defendants.

Case No. 24STCV15440

Hearing Date: August 21, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

VWR INTERNATIONAL, LLC'S MOTION FOR SUMMARY ADJUDICATION

I.

Background

On June 20, 2024, Plaintiffs Robert and Sharon Chambers filed their complaint for personal injury alleging Mr. Chambers developed mesothelioma after he was exposed to asbestos-containing products from his work as a chemist and microbiologist between 1975 and 2002. Mr. Chambers also alleges he was exposed to asbestos-containing materials when he performed remodeling work between 1960 and 1975.

On May

28, 2026, Defendant VWR International, LLC ("VWR") moved for summary judgment, arguing Plaintiffs lack and cannot reasonably obtain evidence to support their causes of action for negligent misrepresentation, intentional concealment, and their demand for punitive damages.

On July

31, 2026, Plaintiffs opposed, arguing VWR failed to timely serve the motion.

On August 6, 2026, VWR replied,

arguing that the moving papers were timely filed and that the court should construe its General Order to permit the motion to proceed.

VWR's motion for summary adjudication is untimely.

Accordingly, the motion is denied.

II.

Discussion

A.

Legal Standard

A defendant seeking summary judgment must "conclusively negate[] a necessary element of the plaintiff's case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process

of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Timeliness

The statutory language of Code of Civil Procedure section 437c and Code of Civil Procedure section 12c require the court to count 81 days backwards from the day before the hearing to determine the last date upon which personal service for a motion for summary judgment could be effectuated. (Code Civ. Proc. §437c subd. (a)(2) [“Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.”]; Code Civ. Proc. §12c subd. (a) [“(a) Where any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, excluding the day of the hearing as provided by Section 12.”].) Based upon the statutory language of Code of Civil Procedure section 12a, the court is additionally required to add additional days to the notice period if the date 81 days before the noticed hearing date was a weekend or court holiday. The statute provides: “(a) If the last day for the performance of any act provided or required by law to be performed within a specified period of time is a holiday, then that period is hereby extended to and including the next day that is not a holiday. For purposes of this section, ‘holiday’

means all day on Saturdays” (Code Civ. Proc § 12a subd. (a).)

After the

court determines the last date upon which personal service could be effectuated, the court must add an additional two court days to the notice period where, as here, the notice was served by e-service. (Code Civ. Proc. 437c subd. (a)(2) [“If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.”] Code Civ. Proc 12c subd. (b) [“(b) Any additional days added to the specified number of days because of a particular method of service shall be computed by counting backward from the day determined in accordance with subdivision (a).”]) This interpretation of the statutes is in accord with the relevant secondary authority. (O’Connor’s California Practice - Civil Pretrial 2026, General Concepts § 6.1 (David I. Levine, et al. eds., 2026) [“The party should count the last day unless it is a Saturday, Sunday, or other judicial holiday. See CCP §§ 12, 12a; CRC 1.10(a). If the last day falls on a Saturday, Sunday, or other judicial holiday, continue to count backward until the next day that is not a Saturday, Sunday, or other judicial holiday. See CCP §§ 12, 12a, 12c. After determining the last day, the party should count backward from that day for any extra days that are added based on the method of service. See CCP § 12c(b). The amount of time added will generally depend on the method of service and the type of document to be served before the hearing.”])

The

court’s General Asbestos Litigation Case Management Order states that “any documents transmitted after 5:00 P.M., Pacific Time, will be deemed to have been served on the following date.” (General Asbestos Litigation Case Management Order (“CMO”), Appendix A-7, ¶6.)

Here, the hearing date

for this motion is August 21, 2026. The last day for VWR to personally serve its motion for summary judgment was Monday, June 1, 2026. Adding two court days for e-service, VWR’s deadline to serve Plaintiffs with the motion for summary adjudication was May 28, 2026. The parties agree that VWR served its motion for summary adjudication on Plaintiffs on May 28, 2026 at 5:47 P.M. (Renken Decl., Exh. B, VWR’s Response at p.2.) Because the motion was served after 5:00 P.M., the motion is deemed served on May 29, 2026 under this court’s case management order. The motion is untimely because VWR served the motion one day late.

VWR

requests that the court construe the CMO to “operate harmony with the Code rather than override it by implication.” (VWR’s Response at p.4.) VWR cites *Sentry Ins. Co. v. Superior Court* (1989) 207 Cal. App. 3d 526. In *Sentry*, the Court of Appeal held that a trial court “may not refuse to hear a summary judgment motion filed within the time limits” of Code of Civil Procedure section 437c and that “local rules and practices may not be applied so as to prevent the filing and hearing of such a motion.” (*Sentry*, supra, 206 Cal.App.3d at p.529, citing *Wells Fargo Bank, N.A. v. Superior Court* (1988) 206 Cal.App.3d 918.) In *Wells Fargo*, a trial court ordered a motion for summary judgment off calendar after the moving party failed to comply with a local rule requiring extensive and complicated motion hearings to be specially set with a particular department. (*Wells Fargo Bank*, supra, 206 Cal.App.3d at p. 921.) The Court of Appeal held that the local rule was invalid there because it conflicted with state law on the summary judgment notice period. (Id. at p.922 [“We read section 437c to allow a party to give more than 28 days notice of its summary judgment motion but to also provide that notice of no more than 28 days is sufficient notice under the statute. Rule 16(d) as applied in this proceeding impermissibly conflicts with section 437c which allows 28 days notice.”].)

Alternatively,

VWR requests that the court continue the hearing to cure the defective notice period. (VWR’s response at p.6.) VWR argues that the rule that trial courts have no authority to continue hearings on motions for summary judgment to cure notice defects does not apply here because there is no bona fide notice defect to cure. (See *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267; *McMahon v. Superior Court* (2003) 106 Cal. App. 4th 112, 118.)

Here,

the court’s CMO is not a local rule but a court order. The court is not refusing to hear VWR’s motion but finds that the motion was not timely filed. The court may not continue the hearing on this matter to cure the notice defect. Accordingly, VWR’s motion for summary adjudication is denied.

III.

Conclusion

VWR’s motion for summary adjudication is untimely.
Accordingly, the motion is denied.

Plaintiffs to give notice.